

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 17, 2026, AT 8:30 A.M.

- Twila Gainer: \$25,672,273.04
- Breanna Gainer: \$8,865,929.88
- Nicholas Gainer: \$8,865,929.88

Therefore, judgment shall be entered against defendant in the amount of \$178,845,995.80. The court additionally awards plaintiffs post judgment interest at the legal rate of 10% per annum from the date of judgment until paid in full.

13. S-CV-0053861 MELTZER, BONNIE v. ROSEVILLE THEATRE ARTS

The motion to compel further deposition is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0054301 LUZZI, JOHN v. LANE, KIMBERLY

The motion for partition instructions is continued to October 15, 2026, at 8:30 a.m. in Department 3.

15. S-CV-0055230 FROLOV ENTERPRISES v. YURTAEV, NIKOLAY

The motion for summary judgment is dropped from calendar as no moving papers were filed with the court.

16. S-CV-0056720 HOLDEN, BREANN v. THE ARC OF PLACER COUNTY

Defendant's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

The court observes defendant did not timely file their demurrer as required by Code of Civil Procedure section 1005, subdivision (b). However, this defect was waived by plaintiff opposing the merits of defendant's demurrer. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Nonetheless, the court admonishes defendant to timely file their papers for future filings.

Defendant's requests for judicial notice are granted.